

Court No. - 29

Case :- WRIT - C No. - 22823 of 2019

Petitioner :- Chandra Pal

Respondent :- Dakshinachal Vidyut Vitran Nigam Ltd And 4 Others

Counsel for Petitioner :- Hans Pratap Singh

Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble Pankaj Mithal, J.

Hon'ble Saral Srivastava, J.

Heard Sri Hans Pratap Singh, learned counsel for the petitioner and Sri Krishna Agarwal, learned counsel appearing for the respondents no. 1 and 2.

The petitioner being aggrieved by the electricity bill dated 20.8.2008/18.3.2013 and the demand notice dated 18.2.2014 issued in pursuance thereof filed Writ Petition No. 22075 of 2014 which was disposed of vide order dated 14.5.2014 with the direction to the competent authority to decide the matter under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 within one month.

In pursuance thereof, the Executive Engineer has passed an order dated 4.8.2014 rejecting the grievance of the petitioner and holding the bills to be correct and directed the petitioner to deposit Rs.4,54,271/- within seven days.

The petitioner is aggrieved by the aforesaid order of the Executive Engineer and submits that his grievance has not been decided by the competent authority as Executive Engineer is not the competent authority rather as per the bill itself, the grievance of the petitioner was required to be dealt with by the Consumer Grievance Redressal Forum.

As it may be, the matter regarding the correctness of the electricity bill has been considered and decided by the Executive Engineer, and if the petitioner is not satisfied by the order of the Executive Engineer, he can make a complaint to the Consumer Grievance Redressal Forum in accordance with law clause 7.10 of the Uttar Pradesh Electricity Supply Code, 2005 read with Uttar Pradesh Electricity Regulatory Commission (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2007.

Accordingly, we **dispose off** the writ petition with liberty to the petitioner to make a complaint before the Consumer Grievance

Redressal Forum within a period of two weeks from today and in case, any such complaint be made to the Forum, it shall be considered on its own merit without going into technicalities of limitation etc. in accordance with law most expeditiously.

Order Date :- 23.7.2019

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